



DECISION

Complaint No. : POS/321/KE-25

Name and Address of the Complainant : The Secretary, Delhi Mercantile Muslim Co-operative Housing Society Ltd. SNPA-6-B, Dr. Mehmood Hussain Road, off Tariq Road, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED UNAUTHORIZED CONSTRUCTION ON PLOT NO. 7/299, BLOCK-03, DELHI MERCANTILE CO-OPERATIVE HOUSING SOCIETY.**

THE COMPLAINT

The Secretary, Delhi Mercantile Muslim Co-operative Housing Society Ltd. in his complaint dated 17.04.2025 stated that some illegal and unauthorized construction is taking place at Plot No. 7/299, Block-3, Delhi Mercantile Co-operative Housing Society Ltd, Karachi. The complainant alleged that the plan forwarded by builder was for a residential bungalow comprising a basement, ground floor, and one upper floor. However, the builder has grossly violated the plan forwarded to the society. The complainant further stated that now the builder is not providing a copy of approved building plan, instead, the builder/owner is constructing multiple units / portions on each floor, which is a clear violation of building regulations. The construction is highly unsafe, as the builder has failed to maintain the compulsory open space (COS) around the structure. The walls are built dangerously close to the neighboring buildings, directly touching room boundaries, which is not only illegal but poses serious risks to the safety and privacy of adjacent residents. The SBCA, despite having been informed has failed to take any action. He, therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of complaint under Section 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response Deputy Director, District East, SBCA vide letter dated 12.06.2025 furnished report as follows:

- i. The Authority (SBCA) has granted the approval of proposed building plan for Basement + G+01 upper floor in respect of subject plot vide letter dated 04.06.2024.
- ii. That the owner/builder raised construction in violation of the approved building plan and the matter was filed before the Honorable Sindh High Court in Civil Suit No. 1008 of 2024.

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- iii. That the Authority (SBCA) in compliance of the orders of the Honorable Sindh High Court scheduled the action for removal of violative construction on 20-01-2025 under intimation/coordination with the Law Enforcement Agencies.
- iv. That on the scheduled date of action, the SBCA initiated the demolition action against the violative construction and submitted compliance report before the Honorable Sindh High Court on 20.02.2025 and the Honorable Sindh High Court dismissed the said Civil Suit vide order dated 20.02.2025.

3. In order to sort out the issue Investigation Officer fixed the case for hearing on 18.11.2025, Mr. A. Khalique, SBI, SBCA appeared with copy of approved plan and latest pictures. It transpired that the builder has violated the building plan as approved and has built 04 separate portion of G+1 on this 934 sq. yds. plot. The matter was heard by the Honourable Sindh High Court and disposed with directions to demolish construction in violation of building plan. Now, the place is inhabited and third party interest has accrued, preventing any further demolition action by SBCA.

FINDING

4. The matter has already been adjudicated upon before the Honorable High Court of Sindh in Civil Suit No. 1008 of 2024.

CONCLUSION

5. In view of the above, further proceedings in the matter are hereby dropped and the complaint in hand is disposed of as dismissed.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 05.12, 2025